

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Katelyn Williams	Team: Team # 3	CCRB Case #: 201000595	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 01/08/2010 1:15 PM	Location of Incident: § 87(2)(b) and § 87(2)(b) and inside the 72nd Precinct stationhouse	Precinct: 72	18 Mo. SOL 7/8/2011	EO SOL 7/8/2011	
Date/Time CV Reported Sat, 01/09/2010 10:34 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 01/14/2010 1:53 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			
2. SGT Ronald Perez	04220	930943	072 PCT
3. POM Anthony Massoni	19053	943534	072 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Sean Spencer	04482	929199	072 PCT
2. POM Paul McKenna	24424	935284	072 PCT
3. LT Jaime Ortiz	00000	902145	072 PCT
4. POM Jason Santana	27987	939417	072 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Ronald Perez	Abuse: Sergeant Ronald Perez stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants at § 87(2)(b) and § 87(2)(b) in Brooklyn.	
B.POM Anthony Massoni	Abuse: Police Officer Anthony Massoni searched § 87(2)(b) at § 87(2)(b) and § 87(2)(b) in Brooklyn.	
C.SGT Ronald Perez	Discourtesy: Sergeant Ronald Perez spoke obscenely towards § 87(2)(b) at § 87(2)(b) and § 87(2)(b) in Brooklyn.	
D. An officer	Abuse: An officer searched § 87(2)(b) at § 87(2)(b) and § 87(2)(b) in Brooklyn.	
E.POM Anthony Massoni	Abuse: Police Officer Anthony Massoni searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants at § 87(2)(b) and § 87(2)(b) in Brooklyn.	
F. An officer	Discourtesy: An officer spoke obscenely towards § 87(2)(b) at § 87(2)(b) and § 87(2)(b) in Brooklyn.	
G.SGT Ronald Perez	Abuse: Sergeant Ronald Perez refused to provide his shield number to § 87(2)(b) inside the 72nd Precinct stationhouse in Brooklyn.	
§ 87(2)(g), § 87(4-b)		

Case Summary

§ 87(2)(b) filed a complaint with the Internal Affairs Bureau via telephone on January 9, 2010 (Encl. 4A). The complaint was forwarded to the CCRB on January 14, 2010 (Encl. 5A-B).

At approximately 1:15p.m. on January 8, 2010, Sgt. Ronald Perez and PO Anthony Massoni of the 72nd Precinct Street Narcotics Enforcement Unit stopped § 87(2)(b) and § 87(2)(b)'s vehicle in the vicinity of § 87(2)(b) and § 87(2)(b) in Brooklyn. § 87(2)(b) and § 87(2)(b) went to the 72nd Precinct stationhouse later on the same date to file a complaint. The following allegations resulted from the officers' actions:

- **Allegation A: Abuse of Authority- Sergeant Ronald Perez stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants at § 87(2)(b) and § 87(2)(b) in Brooklyn.** § 87(2)(g)

- **Allegation B: Abuse of Authority- Police Officer Anthony Massoni searched § 87(2)(b) at § 87(2)(b) and § 87(2)(b) in Brooklyn.**

- **Allegation C: Discourtesy- Sergeant Ronald Perez spoke obscenely towards § 87(2)(b) at § 87(2)(b) and § 87(2)(b) in Brooklyn.** § 87(2)(g)

- **Allegation D: Abuse of Authority- An officer searched § 87(2)(b) at § 87(2)(b) and § 87(2)(b) in Brooklyn.** § 87(2)(g)

- **Allegation E: Abuse of Authority- Police Officer Anthony Massoni searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants at § 87(2)(b) and § 87(2)(b) in Brooklyn.** § 87(2)(g)

- **Allegation F: Discourtesy- An officer spoke obscenely towards § 87(2)(b) at § 87(2)(b) and § 87(2)(b) in Brooklyn.** § 87(2)(g)

- **Allegation G: Abuse of Authority- Sergeant Ronald Perez refused to provide his shield number to § 87(2)(b) inside the 72nd Precinct stationhouse in Brooklyn.** § 87(2)(g)

- § 87(2)(g), § 87(4-b)

During their in-person interviews at the CCRB on January 21, 2010, both § 87(2)(b) and § 87(2)(b) decided to proceed with mediation. § 87(2)(g)

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) *Hispanic male, 6'1" tall, 150 pounds, brown hair, brown eyes.*

CCRB Statement/Photograph Identification Statement

§ 87(2)(b) was interviewed at the CCRB on January 21, 2010 (Encl. 7A-F). He had previously provided a brief telephone statement to the CCRB on January 19, 2010 (Encl. 6A). He returned to the CCRB on April 12, 2010 for a photograph identification interview (Encl. 7G-Y). He provided further details to the CCRB over the telephone on August 10, 2010 (Encl. 7X). § 87(2)(g)

At approximately 1:15p.m. on January 8, 2010, § 87(2)(b) and his fiancé, § 87(2)(b) drove to his brother § 87(2)(b)'s house (located at § 87(2)(b) in Brooklyn) to drop off money for movie tickets, which § 87(2)(b) was going to pick up from Costco.

§ 87(2)(b) was driving and § 87(2)(b) was in the passenger seat. When they pulled up in front of the building, § 87(2)(b)'s brother approached their vehicle, and § 87(2)(b) handed him \$50.00 in cash through the window. § 87(2)(b)'s brother did not hand her anything in return. The money was not in an envelope or concealed in any way. They talked for a few minutes, and then § 87(2)(b) and § 87(2)(b) drove away.

§ 87(2)(b) was driving on § 87(2)(b) and had just crossed § 87(2)(b) when he was pulled over by a dark blue sedan with its sirens on. The CCRB determined that the officers actually stopped § 87(2)(b) on the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn. Two males in plainclothes exited the vehicle. These males were identified by the CCRB as Sgt. Ronald Perez and PO Anthony Massoni.

PO Massoni approached the driver's window and told § 87(2)(b) to exit the vehicle. § 87(2)(b) opened his door and PO Massoni grabbed his upper arm and guided him out of the car (he did not pull him out). PO Massoni walked § 87(2)(b) to the back of the vehicle and told him to turn around and place his hands on his trunk. Within a matter of seconds, there were about six more officers surrounding § 87(2)(b)'s vehicle. They were all male and were all in plainclothes except for one, who was in uniform.

Once at the back of the vehicle, PO Massoni proceeded to search inside all of the pockets of § 87(2)(b)'s jacket and jeans. In his telephone statement § 87(2)(b) indicated that PO Massoni frisked him, but he made no such allegation in his formal statement (in which he indicated that PO Massoni did not pat down any of his pockets before placing his hands inside).

As PO Massoni was searching § 87(2)(b) another officer began speaking with him. § 87(2)(b) obtained his shield number (4482) by looking at his shield. This officer was identified by the CCRB as PO Sean Spencer. PO Spencer asked § 87(2)(b) what he had been doing in the vicinity of § 87(2)(b) in Brooklyn.

While speaking with PO Spencer, § 87(2)(b) observed another officer, identified by the CCRB as Sgt. Perez, approach the passenger side door. Sgt. Perez spoke with § 87(2)(b) but § 87(2)(b) could not hear what they were saying. § 87(2)(b) then exited the vehicle. Sgt. Perez began searching inside § 87(2)(b)'s jacket pockets while standing outside the passenger door of the vehicle.

§ 87(2)(b) later told § 87(2)(b) that the only uniformed officer present searched inside the vehicle while she and § 87(2)(b) were being searched. § 87(2)(b) did not see this himself. He could not provide a description of the uniformed officer, because he was behind him throughout most of the incident.

After PO Massoni finished searching § 87(2)(b) he climbed into the driver's seat of § 87(2)(b)'s vehicle. § 87(2)(b) could not see exactly where PO Massoni searched in the vehicle, but he stated that he was inside the vehicle for about two minutes. § 87(2)(b) did not see any other officer enter the vehicle. (In his initial telephone statement, § 87(2)(b) stated that officers searched everywhere in his vehicle. He made no such allegation in his formal statement).

§ 87(2)(b) tried to tell the officers that his sister is an officer with the 77th Precinct, but one of the officers behind him (who he could not see) responded, "I don't give a fuck."

Once PO Massoni was done searching § 87(2)(b)'s vehicle, PO Spencer explained to § 87(2)(b) that the block his brother lives on is "hot," and there are a lot of drug transactions that occur in that area. He told § 87(2)(b) that officers saw him and § 87(2)(b) pass by § 87(2)(b) in Brooklyn and pass U.S. currency through the window. The officers left the location without issuing § 87(2)(b) any summonses. The officers never asked for his or § 87(2)(b) IDs, nor did they ask for their names or contact information.

When § 87(2)(b) told § 87(2)(b) that an officer had cursed at her, § 87(2)(b) decided to go to the 72nd Precinct stationhouse to file a complaint. Once at the stationhouse, § 87(2)(b) asked the officer at the front desk to file a complaint. This officer was identified by the CCRB as PO Jason Santana. PO Santana began to take down § 87(2)(b)'s information, but while he was doing so, Sgt. Perez approached and asked, "Did you come here with a PBA card?" § 87(2)(b) responded, "Why don't you talk to me the way you spoke to me outside." Sgt. Perez and § 87(2)(b) began to argue with raised voices. § 87(2)(b) did not recall exactly what they were saying to each other.

§ 87(2)(b) did not directly ask Sgt. Perez to file a complaint. Sgt. Perez then asked § 87(2)(b) to leave. Before § 87(2)(b) left, Sgt. Perez pointed to a phone number that was written on a flyer on the wall and told § 87(2)(b) to call that number to make a complaint. § 87(2)(b) wrote down the number and then began to leave. He did not speak with the officer at the desk again, and he did not ask again to file a complaint at the stationhouse.

Sgt. Perez walked out of the stationhouse just before § 87(2)(b). As he was walking out, he asked § 87(2)(b) "Oh, would you like my badge number?" § 87(2)(b) told him that he would like his badge number, and the sergeant responded, "You can't have it now." Sgt. Perez then left the stationhouse.

During his photograph identification interview, § 87(2)(b) was shown photographs of all of the officers working out of the 72nd Precinct who could potentially have been wearing plainclothes on the date of this incident, including Sgt. Perez, PO Massoni and PO Spencer. However, he did not definitively recognize any of them.

Complainant/Victim: § 87(2)(b) § 87(2)(b)

- § 87(2)(b) *black female, 5'3" tall, brown hair, brown eyes.*

CCRB Statement/Photograph Identification Statement

§ 87(2)(b) was interviewed at the CCRB on January 21, 2010 (Encl. 8A-E). She appeared again at the CCRB on April 12, 2010 for a photograph identification interview (Encl. 8F-X). Her statements are summarized below.

§ 87(2)(g)
§ 87(2)(b) She stated that after they drove away, they were pulled over by an unmarked vehicle in the vicinity of § 87(2)(b) and § 87(2)(b). The CCRB determined that the officers actually stopped § 87(2)(b) on the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn. An officer, identified by the CCRB as PO Massoni, approached § 87(2)(b)'s window and told him to exit the vehicle. § 87(2)(b) opened his vehicle door, and PO Massoni pulled § 87(2)(b) out of the vehicle by his left arm and walked him to the back of the vehicle. PO Massoni and another officer (who she could not see) then pushed § 87(2)(b) into the trunk.

§ 87(2)(b) could not see what happened between § 87(2)(b) and PO Massoni after this point because she remained in the vehicle. Within a matter of seconds, multiple officers arrived and surrounded her vehicle. They were all males in plainclothes except for one, who was a uniformed male. During her formal statement, § 87(2)(b) stated that the uniformed male was white. However, when she appeared at the CCRB for her photograph identification interview, she stated that he was Asian. She did not recognize the uniformed officer in any of the photographs she viewed.

An officer, identified by the CCRB as Sgt. Ronald Perez, approached § 87(2)(b) window. § 87(2)(b) attempted to tell Sgt. Perez that § 87(2)(b)'s sister is a police officer, but when she did, Sgt. Perez stated, "I don't give a fuck. I'm a sergeant. Get the fuck out of the car." § 87(2)(b) exited the vehicle, and Sgt. Perez pulled her towards the back of her car.

Another, unidentified male officer in plainclothes asked § 87(2)(b) if she had any needles on her. He then searched inside the pockets of her jacket. He did not pat any of her pockets down prior to reaching inside of them. The officer asked her to empty out the pockets of her jeans, and she complied.

§ 87(2)(b) described this officer as a white male in plainclothes with either black or dark-brown hair. He was about 6'1" tall. During her photograph identification interview at the CCRB, § 87(2)(b) stated that PO Paul McKenna resembled the officer who searched her, but she was not sure if he was actually him.

As the officer was searching her pockets, he repeatedly asked her where she was coming from and where she lived, and she provided such information. § 87(2)(b) asked him if he wanted to see her ID, and he said yes. However, when she informed him that he would have to take it out of her back pocket, he told her to forget about it. He never took her ID, nor did he ask her for her name or contact information.

§ 87(2)(b) could not see what was happening with § 87(2)(b) while she was being searched because her back was mostly to him. § 87(2)(b) did not see the officers frisking or searching § 87(2)(b). However, she did see one of the officers (the uniformed male) enter the backseat of her vehicle. The CCRB determined that it was actually PO Massoni who entered the vehicle. § 87(2)(b) saw PO Massoni looking in-between the seats and underneath the driver's seat. The paneling on the vehicle doors is broken and hangs off of the rest of the door. PO Massoni pulled the paneling back and looked behind it. § 87(2)(b) did not see him remove anything from the vehicle, nor did she see any other officer enter the vehicle.

After she was searched, the officers told § 87(2)(b) to go stand on the sidewalk. PO Spencer stood on the sidewalk with her and explained that there is a lot of drug activity in the building next door to § 87(2)(b)'s building. The officers then left the location without issuing them any summonses.

§ 87(2)(b) and § 87(2)(b) went to the 72nd Precinct stationhouse later that day and § 87(2)(b) asked to file a complaint. An officer in a white uniform shirt told another uniformed officer to provide him with the number they could call to file a complaint. Sgt. Perez was at the stationhouse at this time, and he approached § 87(2)(b) and § 87(2)(b) and asked them if they wanted his name and shield number. Before they could answer, he stated, "You know what? Forget it. I'm not gonna give it to you," and then walked away. Neither § 87(2)(b) nor § 87(2)(b) actually asked him for this information.

During her photograph identification interview, § 87(2)(b) was shown photographs of all of the officers working out of the 72nd Precinct who could potentially have been wearing plainclothes on the date of this incident, including Sgt. Perez, PO Massoni and PO Spencer. However, aside from PO Spencer, who she correctly identified, § 87(2)(b) did not definitively recognize any of the officers.

NYPD Statements:

Subject Officer: SGT. RONALD PEREZ

• § 87(2)(b) *old Hispanic male, 6'3" tall, 200 pounds, brown hair, brown eyes.*

Sgt. Perez worked from 2:00p.m. until 9:57p.m. on January 8, 2010. He was dressed in plainclothes and was either the SNEU or the conditions supervisor. He was working with PO Anthony Massoni. They were using an unmarked vehicle (he did not recall which vehicle).

Memo Book

Sgt. Perez noted in his memo book (Encl. 11A-B) that at 1:15p.m. on January 8, 2010, he stopped a maroon Dodge Dynasty on the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn. A stop, question and frisk report was prepared, but the individual refused to provide identification.

CCRB Statement

Sgt. Ronald Perez was interviewed at the CCRB on July 7, 2010 (Encl. 12A-C). He stated that at approximately 1:15p.m. on January 8, 2010, he and PO Massoni were parked on the northwest corner of § 87(2)(b) and § 87(2)(b) in Brooklyn. At the time, the location was listed on their narcotics plan, and they were there to make observations of reported narcotics activity in the area.

As they were observing the location, they saw a red sedan pull up in front of a fire hydrant. A heavyside Hispanic male (identified by the CCRB as § 87(2)(b) § 87(2)(b)) then exited a building that was believed to be

involved in narcotics activity with a package in his hand. Sgt. Perez believes the package was an envelope, but he did not recall the color or size of the envelope. § 87(2)(b) § 87(2)(b) approached the red sedan and handed the package to someone inside the vehicle. The individual inside the vehicle then handed him another package (Sgt. Perez did not recall the color, size or shape of the package).

After the exchange, § 87(2)(b) § 87(2)(b) went back inside the building and the red sedan drove away. Sgt. Perez stated that this behavior was indicative of a narcotics transaction, especially considering the narcotics prone nature of the area. Sgt. Perez and PO Massoni thus followed the red sedan until it was out of the narcotics set and then pulled it over in the vicinity of § 87(2)(b) and § 87(2)(b) (The CCRB determined that they were actually pulled over on the corner of § 87(2)(b) and § 87(2)(b)).

Sgt. Perez alerted the rest of the field team as to where he and PO Massoni were and what was occurring. PO Massoni then approached the driver's side of the vehicle and Sgt. Perez approached the passenger side. Sgt. Perez stated that as they were approaching the vehicle, he observed the driver, identified by the CCRB as § 87(2)(b) reach down and appear to be stuffing something under his seat. Sgt. Perez stated that this furtive movement made him fear that the driver was hiding something under the seat that could be dangerous (a weapon, etc.). This led the officers to removed the occupants of the vehicle and frisk them to make sure they did not have any weapons on them.

Sgt. Perez and PO Massoni asked the occupants to step out of the vehicle, and they complied (Sgt. Perez asked the passenger, identified by the CCRB as § 87(2)(b) and PO Massoni asked § 87(2)(b). Sgt. Perez denied stating, "I don't give a fuck. I'm a sergeant. Get the fuck out of the car," and he denied using any discourteous language towards § 87(2)(b) or § 87(2)(b) at any point. He denied hearing PO Massoni use any discourteous language towards § 87(2)(b) or § 87(2)(b) during this incident.

§ 87(2)(b) and § 87(2)(b) were brought to the back of their vehicle. They were a little nervous and apprehensive, but they were physically compliant. Sgt. Perez frisked § 87(2)(b) for his safety, and PO Massoni frisked § 87(2)(b). Sgt. Perez remained on the outside of § 87(2)(b) clothing and did not enter § 87(2)(b) pockets at any point. He was the only officer who frisked § 87(2)(b) at the incident location. He did not observe any other officer enter § 87(2)(b) pockets, nor did he see PO Massoni enter § 87(2)(b) s pockets at any point.

Two additional officers responded to the location after § 87(2)(b) and § 87(2)(b) were out of the vehicle. Sgt. Perez believes one of the officers was PO Sean Spencer, but he did not recall who the other officer was. He believes that one officer from another command (he did not recall who) also responded at one point. Sgt. Perez did not recall if any of the responding officers interacted with § 87(2)(b) or § 87(2)(b) at any point.

PO Massoni searched the immediate (grab-able) areas in the front of the vehicle (next to and under the driver's seat and the front passenger seat) to make sure that there were no weapons within reach of the front seats because § 87(2)(b) had appeared to be stuffing something under his seat when the officers were first approaching. PO Massoni did not find any weapons or contraband in these areas of the vehicle. He did not search anywhere else in the vehicle. Sgt. Perez did not recall if any other officer entered the vehicle at any point.

After PO Massoni conducted the limited search of the vehicle, Sgt. Perez explained to § 87(2)(b) and § 87(2)(b) why they had stopped them. Sgt. Perez instructed PO Massoni to prepare a stop, question and frisk report, and they left the location. The whole incident lasted for about ten minutes. Sgt. Perez did not recall seeing § 87(2)(b) or § 87(2)(b) again after leaving this location. He did not recall seeing them in the stationhouse.

Sgt. Perez did not hear any officer at the incident location state, "I don't give a fuck."

Subject Officer: PO ANTHONY MASSONI

- § 87(2)(b) -old white male, 5'10" tall, 180 pounds, brown hair, green eyes.

- *PO Massoni worked from 12:00p.m. until 8:35p.m. on January 8, 2010. He was dressed in plainclothes and was assigned to S.N.E.U. in the 72nd Precinct with Sgt. Ronald Perez. They were using an unmarked RMP (it was either a Crown Victoria or an Impala.*

Stop, Question & Frisk Report

According to the stop, question and frisk report prepared by PO Massoni (Encl. 13A), PO Massoni stopped a Hispanic male in the vicinity of § 87(2)(b) and § 87(2)(b) in Brooklyn at 1:15p.m. on January 8, 2010. The male refused to provide his identification. The reasons for the stop were listed as follows: actions indicative of engaging in a drug transaction; furtive movements; and evasive, false or inconsistent responses to officer's questions. The report indicates that the male was frisked but not searched. The reasons listed for the frisk were listed as follows: refusal to comply with officer's directions and furtive movements. In terms of the physical force used, PO Massoni indicated that he had his hands on the male and that he had the male against a wall.

Memo Book

PO Massoni noted in his memo book (Encl. 13B-C) that at approximately 1:15p.m. on January 8, 2010, he conducted a vehicle stop in the vicinity of § 87(2)(b) and § 87(2)(b) in Brooklyn. The vehicle was a maroon Dodge Dynasty. At 1:21p.m., he prepared a stop, question and frisk report for a John Doe (black-Hispanic male) who refused to provide his ID.

CCRB Statement

PO Anthony Massoni was interviewed at the CCRB on July 9, 2010 (Encl. 14A-C). The interview was conducted by Inv. Hilary Hudson and Inv. Dane Buchanan. PO Massoni stated that at approximately 1:15p.m. on January 8, 2010, he and Sgt. Perez were conducting a S.N.E.U. operation on § 87(2)(b) between § 87(2)(b) and § 87(2)(b) in Brooklyn. They were parked on the northwest corner of the block and were making observations of a stretch of buildings on that particular block that is known for narcotics activity. PO Massoni could not provide a name, but there is a drug dealer known to the NYPD on that particular block who has federal charges pending.

At the above noted time, PO Massoni observed a maroon Dodge Dynasty pull up in the middle of the block (§ 87(2)(b) between § 87(2)(b) and § 87(2)(b)). The vehicle parked in front of a fire hydrant in the middle of the block (over 100 feet from the officers' RMP). The driver of the vehicle, identified by the CCRB as § 87(2)(b) seemed to be very nervous and was checking his side view mirrors. There was a female in the passenger seat who was identified by the CCRB as § 87(2)(b).

The Dynasty was covered in dirt and soot. This raised PO Massoni's suspicions because a lot of the cars that are stolen from under the BQE nearby are covered in dirt and soot because they are left there for a long time. The officers observed the vehicle for a minute or two. As they were watching, a heavyset Hispanic male, identified by the CCRB as § 87(2)(b) § 87(2)(b) exited one of the buildings on the west side of the street. He was holding U.S. Dollar bills and what appeared to be an envelope (which was about the size of his hand) in his hand. PO Massoni did not recall the color or material of the envelope. § 87(2)(b) § 87(2)(b) approached the passenger-side window of the Dynasty. As he did so, he seemed to be nervous and was looking around. § 87(2)(b) leaned over and appeared to greet § 87(2)(b) § 87(2)(b). He then leaned over and did a quick hand-to-hand exchange with § 87(2)(b) § 87(2)(b) § 87(2)(b) § 87(2)(b). § 87(2)(b) reached his hand into the passenger-side window. § 87(2)(b) handed § 87(2)(b) § 87(2)(b) something very small (PO Massoni could not see what it was, but Sgt. Perez stated that he believed it was some sort of packaging), and § 87(2)(b) § 87(2)(b) handed him the money and the envelope. § 87(2)(b) § 87(2)(b) briefly examined whatever it was that § 87(2)(b) had handed him and then slipped it into his pocket.

Based on PO Massoni's experience working in narcotics, the nature of the location and the behavior of the individuals, PO Massoni believed this to be a drug transaction.

The Dynasty then pulled off and headed toward § 87(2)(b). The officers did not want to compromise the set by stopping a vehicle on that block, so they followed it to the corner of § 87(2)(b) and § 87(2)(b). As they approached the vehicle, PO Massoni noticed that § 87(2)(b) was fidgeting a lot. His hands went

from the wheel straight down and you could tell from his shoulders that he was moving his arms around. PO Massoni did not know what § 87(2)(b) was doing at this point.

PO Massoni yelled to § 87(2)(b) “Keep your hands where I can see them.” When PO Massoni said this, § 87(2)(b) lunged forward. PO Massoni did not know what § 87(2)(b) was grabbing for, so he opened the driver’s door, asked § 87(2)(b) to step out of the vehicle and grabbed his left arm as he was getting out of the vehicle. Once he was out of the vehicle, PO Massoni told him to place his hands on the hood of the vehicle. Sgt. Perez asked § 87(2)(b) to exit the vehicle.

PO Massoni called over his radio for an additional unit to respond to the location. He then frisked § 87(2)(b). He felt around his waistband, along the side of his pants and the outside of his pockets. He did not enter his pockets at any point.

PO Massoni did not see what Sgt. Perez and § 87(2)(b) were doing because they were on the other side of the vehicle and he was focused on § 87(2)(b). He did not see Sgt. Perez frisk or search § 87(2)(b). Other officers arrived about three minutes after PO Massoni called for assistance, and they went to assist Sgt. Perez. He believes the additional officers were PO Sean Spencer and PO Justin Cracchiola.

After frisking § 87(2)(b) PO Massoni searched the lunge-able areas of the vehicle (in front of the driver’s seat, underneath the steering wheel, to the right of the passenger area and the side door of the car). He never searched the backseat area of the vehicle. When he searched the lunge-able areas, PO Massoni found a screwdriver jammed all the way in driver’s side door. PO Massoni was not sure if any other officer searched the vehicle.

PO Massoni asked § 87(2)(b) why he had reached down like he did, and he stated that he was looking for his wallet. PO Massoni then explained why they stopped him. When he asked § 87(2)(b) where he was coming from, he mentioned a different location than that of where the officers observed him.

PO Massoni asked § 87(2)(b) about the Hispanic male who he had met up with on § 87(2)(b). At first § 87(2)(b) said it was his cousin, and he then said it was his brother. PO Massoni asked him what they exchanged, and he said that § 87(2)(b) § 87(2)(b) owed him money. He also mentioned something about concert tickets. PO Massoni then told § 87(2)(b) to get back into his vehicle while PO Massoni went to retrieve his memo book so that he could prepare a stop, question and frisk report.

When PO Massoni returned to his vehicle, § 87(2)(b) seemed to be very irritated. He refused to provide his I.D. or his contact information to PO Massoni. There were no traffic infractions, so PO Massoni and Sgt. Perez let them go without a summons. PO Massoni prepared a stop, question and frisk report for “John Doe.” PO Massoni did not hear any officer curse at any of the civilians at any point, nor did he do so. PO Massoni did not interact with § 87(2)(b) at all.

Witness Officer: PO SEAN SPENCER

- § 87(2)(b) -old white male, 5’8” tall, 170 pounds, brown hair, brown eyes.
- PO Spencer worked from 12:00p.m. until 8:35p.m. on January 8, 2010. He was dressed in plainclothes and was assigned to SNEU with PO Paul McKenna and PO Scott Satriana. They were using RMP § 87(2)(e), § 87(2)(f), which is a maroon Ford Taurus.

Memo Book

PO Spencer did not have any entries in his memo book regarding this incident (Encl. 9A-C).

CCRB Statement

PO Sean Spencer was interviewed at the CCRB on May 28, 2010 (Encl. 10A-B). He stated that at approximately 1:15p.m. on January 8, 2010, Sgt. Ronald Perez and PO Anthony Massoni called over the radio for backup on a vehicle stop in the vicinity of § 87(2)(b) and § 87(2)(b) in Brooklyn. When PO Spencer, PO McKenna and PO Satriana arrived at the location, Sgt. Perez and PO Massoni were speaking with two civilians outside their vehicle. The civilians were identified by the CCRB as § 87(2)(b) and § 87(2)(b) § 87(2)(b). § 87(2)(b) § 87(2)(b) seemed agitated, but § 87(2)(b) was calm. PO Spencer could not recall anything that § 87(2)(b) said.

Neither PO Spencer nor his partners ever spoke with the civilians. They just stood by in case their assistance was needed. Sgt. Perez and PO Massoni were just speaking with § 87(2)(b) and § 87(2)(b). PO Spencer did not see any officer enter the civilians' vehicle, nor did he see officers frisk or search the civilians. PO Spencer did not recall what was said between the civilians and the officers. PO Spencer did not hear any officer tell the civilians, "I don't give a fuck," nor did he hear any officer speak discourteously towards them at any point.

PO Spencer believes Sgt. Perez and PO Massoni had already determined that the individuals were going to be released without a summons prior to PO Spencer and his partners arriving at the location. PO Spencer was at the incident location for about five minutes. He did not recall if Sgt. Perez or PO Massoni ever informed him as to what occurred prior to PO Spencer's arrival. PO Spencer did not see the civilians again after they were released from the incident location.

Witness Officer: PO PAUL MCKENNA

- § 87(2)(b)-old white male, 6'1" tall, 180 pounds, brown hair, brown eyes.
- PO McKenna worked from 7:05a.m. until 3:40p.m. on January 8, 2010. He believed he was dressed in uniform (but was not sure) and could not recall who he was working with. He was using unmarked RMP § 87(2)(e), § 87(2)(f).
- Since the date of this incident, PO McKenna has been promoted to sergeant and has been transferred to PSA 2. However, this report will refer to him using the rank he held at the time of this incident.

Memo Book

PO McKenna did not have any memo book entries regarding this incident (Encl. 16A-C).

CCRB Statement

PO Paul McKenna was interviewed at the CCRB on February 1, 2011 (Encl. 17A-B). He did not have an independent recollection of this incident. He was shown the photographs of § 87(2)(b) and § 87(2)(b) on their NYS driver's licenses, but he did not recognize them. He was also given a brief description of this incident, but it did not refresh his memory.

PO McKenna did not recall working with PO Sean Spencer on the date of this incident. He stated that PO Spencer is a SNEU officer, and he himself was part of the burglary team and had never been part of the SNEU team in the 72nd Precinct. He stated that he had worked with the SNEU team once or twice while at the 72nd Precinct, but he did not recall exactly when, nor did he specifically recall conducting a vehicle stop with them. He did not recall responding to a call for assistance from Sgt. Perez or PO Massoni on the date of this incident, nor did he recall working with them at any point on the date of this incident.

Witness Officer: PO JASON SANTANA

- § 87(2)(b)-old Hispanic male, 5'9" tall, 170 pounds, black hair, brown eyes.
- PO Santana worked from 7:05a.m. until 3:40p.m. on January 8, 2010. He was dressed in uniform and was working as the T/S Operator.

Memo Book

PO Santana was on limited/administrative duty at the time of this incident, and was therefore not keeping a memo book.

CCRB Statement

PO Jason Santana was interviewed at the CCRB on August 18, 2010 (Encl. 15A-B). He did not recall who was working as the desk officer at the time of this incident. He stated that as the Switchboard Operator, he answers the phones and interacts with civilians who enter the stationhouse looking for assistance. At approximately 3:00p.m. on January 8, 2010, he observed Sgt. Ronald Perez interacting with a Hispanic male who arrived at the stationhouse to complain

about something. This male was identified by the CCRB as § 87(2)(b)

PO Santana did not believe he ever interacted with § 87(2)(b) inside the stationhouse. He did not believe § 87(2)(b) spoke with him before he began interacting with Sgt. Perez, nor did he hear § 87(2)(b) actually request to file a complaint while inside the stationhouse. He believes there was another individual with § 87(2)(b) but he did not recall if this individual was male or female, nor did he recall if he (PO Santana) ever interacted with this female.

PO Santana did not recall how § 87(2)(b) came into contact with Sgt. Perez inside the stationhouse. He just recalled observing them interacting with each other in the entry vestibule just outside the window that PO Santana was sitting behind. § 87(2)(b) was upset, and his voice was raised (he was very loud). PO Santana did not recall Sgt. Perez raising his voice while speaking with § 87(2)(b) nor did he recall anything that was said between them. PO Santana did not know if any officer ever provided § 87(2)(b) with the telephone number to the CCRB.

§ 87(2)(b) was inside the stationhouse for more than five minutes, and he was interacting with Sgt. Perez the whole time. He never lowered his voice or calmed down. PO Santana did not see any other officer (whether a captain, a lieutenant, etc.) interact with § 87(2)(b) while he was in the stationhouse. He did not recall if § 87(2)(b) was asked to leave, or if he left on his own. PO Santana did not hear Sgt. Perez ask § 87(2)(b) if he wanted his shield number, nor did he hear Sgt. Perez state, “You can’t have it,” when § 87(2)(b) said that he did want his badge number.

NYPD Documents

Stop, Question & Frisk Report

An initial search for a Stop, Question and Frisk report prepared for this incident yielded negative results (Encl. 23B). However, according to the stop, question and frisk log for the 72nd Precinct for the date of this incident (Encl. 19F), there was one such report prepared by PO Massoni for this incident. Although the stopped individual refused to provide identification, the report indicates that he was a Hispanic male. According to the log, there were no additional stop, question and frisk reports prepared for this incident.

Status of Civil Proceedings

- § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim with the City of New York as of January 24, 2011 with regard to the incident (Encl. 22D).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilians CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) and § 87(2)(b) (Encl. 3A-B).

Subject Officers CCRB History

- Sgt. Ronald Perez has been a member of the service for eight years and there are no substantiated CCRB allegations against him (Encl. 2A).
- PO Anthony Massoni has been a member of the service for four years and there are no substantiated CCRB allegations against him (Encl. 2B).

Conclusion

Identification of Subject Officer

Sgt. Perez and PO Massoni acknowledged that they were the two officers who conducted the initial stop of § 87(2)(b) vehicle. Sgt. Perez further acknowledged that he was the officer who told § 87(2)(b) to step

out of the vehicle. § 87(2)(g)

PO Massoni acknowledged being the officer to remove § 87(2)(b) from the vehicle. He further indicated that he frisked § 87(2)(b) and searched the grab-able areas of his and § 87(2)(b) vehicle. Although § 87(2)(b) believed that a uniformed officer searched her vehicle, § 87(2)(b) indicated that he only saw PO Massoni enter the vehicle. Both Sgt. Perez and PO Massoni indicated that PO Massoni was the only officer who entered the vehicle. § 87(2)(g)

§ 87(2)(b) stated that although Sgt. Perez asked her to step out of her vehicle, she was actually searched by a white male in plainclothes with either black or dark-brown hair who was about 6'1" tall. During her photograph identification interview at the CCRB, she stated that PO McKenna resembled this officer, but she was not sure if he was actually the officer who searched her. PO McKenna did not recall this incident, and neither Sgt. Perez nor PO Massoni recalled PO McKenna being present for this incident.

§ 87(2)(g)

Sgt. Perez stated that he frisked (but did not search) § 87(2)(b) at the incident location, and that he did not see any other officer frisk or search her. § 87(2)(b) stated that he saw Sgt. Perez search § 87(2)(b) but he did indicate that he saw any other officer do so. § 87(2)(g)

§ 87(2)(b) indicated that an officer who he could not see told him, "I don't give a fuck." § 87(2)(b) did not mention hearing an officer make this statement. None of the officers interviewed acknowledged making this statement or hearing any other officer do so. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A: Abuse of Authority- Sergeant Ronald Perez stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants at § 87(2)(b) and § 87(2)(b) in Brooklyn.

It is undisputed that Sgt. Perez and PO Massoni stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants on the date of this incident, and that Sgt. Perez was the only supervisor present when the stop was initiated.

According to *People v. Sobotker*, "Absent at least a reasonable suspicion that its occupants had been, are then or are about to be engaged in conduct in violation of the law, the stopping of an automobile by the police constitutes an impermissible seizure" (*People v. Sobotker*, 43 N.Y.2d 559; 373 N.E.2d 1218; 402 N.Y.S.2d 993; 1978 N.Y., Encl. 1A-D).

As noted in *People v. Cantor*, "Reasonable suspicion is the quantum of knowledge to induce an ordinarily prudent and cautious man under the circumstances to believe criminal activity is at hand," (*People v. Cantor*, 36 N.Y.2d 106, 112-113 (1975), Encl. 1E-J). According to *People v. Cantor*, "an officer must 'indicate specific and articulable facts, which along with any logical deductions, reasonably prompted the intrusion'" (*People v. Cantor*, Encl. 1E-J).

At the time of this incident, PO Massoni and Sgt. Perez (who were working as part of the Street Narcotics Enforcement Unit) were making observations of a stretch of buildings known for narcotics activity. It is undisputed that during this time, § 87(2)(b) and § 87(2)(b) stopped their vehicle in front of this stretch of buildings and passed U.S. currency (\$50.00) through the window of the vehicle to § 87(2)(b)'s brother. PO Massoni indicated that § 87(2)(b) § 87(2)(b) also reached in through the passenger window and appeared to be handing something to one of the occupants of the vehicle. § 87(2)(g)

§ 87(2)(g)

Allegation B: Abuse of Authority- Police Officer Anthony Massoni searched § 87(2)(b) at § 87(2)(b) and § 87(2)(b) in Brooklyn.

§ 87(2)(b) alleged that PO Massoni immediately searched all of the pockets in his jacket and jeans. He stated that PO Massoni did not pat him down first. PO Massoni, on the other hand, indicated that he frisked § 87(2)(b) but did not enter any of his pockets at any point. § 87(2)(g)

§ 87(2)(b) Sgt. Perez indicated that PO Massoni frisked § 87(2)(b) but he stated that he did not see PO Massoni enter § 87(2)(b)'s pockets at any point. § 87(2)(b) indicated that she could not see what was happening between § 87(2)(b) and PO Massoni because her back was to them. § 87(2)(g)

Allegation C: Discourtesy- Sergeant Ronald Perez spoke obscenely towards § 87(2)(b) at § 87(2)(b) and § 87(2)(b) in Brooklyn.

§ 87(2)(b) indicated that Sgt. Perez told her, "I don't give a fuck. I'm a sergeant. Get the fuck out of the car." However, Sgt. Perez denied making such a statement, and PO Massoni denied hearing Sgt. Perez or any other officer do so. None of the other officers interviewed could recall what was said between the officers and civilians at the incident location. § 87(2)(b) stated that he could not hear what was being said between Sgt. Perez and § 87(2)(b) but that § 87(2)(b) later told him that Sgt. Perez had used discourteous language while speaking with her. § 87(2)(g)

Allegation D: Abuse of Authority- An officer searched § 87(2)(b) at § 87(2)(b) and § 87(2)(b) in Brooklyn.

§ 87(2)(b) alleged that she was searched by a white male in plainclothes with either black or dark-brown hair who was about 6'1" tall. § 87(2)(g)

§ 87(2)(b) During her photograph identification interview at the CCRB, she stated that PO McKenna resembled the officer who searched her, but she was not sure if it was actually him. PO McKenna did not recall this incident and did not recognize § 87(2)(b) in the photograph on her driver's license.

None of the officers interviewed acknowledged searching § 87(2)(b) or seeing any other officer do so. Sgt. Perez stated that he frisked (but did not search) § 87(2)(b) at the incident location, but that he did not see any other officer frisk or search her. § 87(2)(b) stated that he saw Sgt. Perez search § 87(2)(b) but he did indicate that he saw any other officer do so. § 87(2)(g)

Allegation E: Abuse of Authority- Police Officer Anthony Massoni searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants at § 87(2)(b) and § 87(2)(b) in Brooklyn.

§ 87(2)(b) alleged that PO Massoni entered the front of his and § 87(2)(b) vehicle through the driver's door and remained in the front of the vehicle for about two minutes. § 87(2)(b) did not see any other officer enter the vehicle. § 87(2)(g)

As discussed in *People v Worthy*, if, considering the totality of the circumstances, “the likelihood of a weapon in the car [is] substantial and the danger to the officer’s safety [is] actual and specific,” a limited search of the front passenger area is justified (*People v. Worthy*, 216 A.D.2d 277; 690 N.Y.S.2d 268; 1999 N.Y. App. Div., Encl. 1K-P).

§ 87(2)(g)

Allegation F: Discourtesy- An officer spoke obscenely towards § 87(2)(b) at § 87(2)(b) and § 87(2)(b) in Brooklyn.

§ 87(2)(b) indicated that an officer who he could not see told him, “I don’t give a fuck” at the incident location. § 87(2)(b) did not mention hearing an officer make this statement. None of the officers interviewed acknowledged making this statement or hearing any other officer do so, § 87(2)(g)

Allegation G: Abuse of Authority- Sergeant Ronald Perez refused to provide his shield number to § 87(2)(b) inside the 72nd Precinct stationhouse in Brooklyn.

Both § 87(2)(b) and § 87(2)(b) indicated that following the vehicle stop, they went to the 72nd Precinct stationhouse to file a complaint. They both alleged that while inside the stationhouse, Sgt. Perez asked § 87(2)(b) if he would like his badge number but then refused to provide it. § 87(2)(b) indicated that he told Sgt. Perez that he did want his shield number, but § 87(2)(b) indicated that she and § 87(2)(b) did not have time to respond to Sgt. Perez before he told them that they could not have it. § 87(2)(b) indicated that his discussion with Sgt. Perez became heated and that they were arguing with raised voices.

Sgt. Perez did not acknowledge interacting with § 87(2)(b) and Ms. § 87(2)(b) inside the 72nd Precinct stationhouse on the date of this incident. However, PO Santana, who was working as the T/S operator at the time, confirmed that § 87(2)(b) and § 87(2)(b) did, in fact, appear at the 72nd Precinct stationhouse on the date of this incident. § 87(2)(g)

PO Santana stated that § 87(2)(b) looked upset while he was interacting with Sgt. Perez and that he was speaking with a raised voice.

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

[REDACTED]

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date